
Earning the Congress's Vote: An Eight-Question Passage Framework for Enacting H. R. 9510 in the House and Senate

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Abstract.

H. R. 9510, the Verification Before Generation in Physical AI Oncology Trials Act of 2026, would require that an automated verification, validation, and uncertainty quantification examination clear robot-patient interaction code before that code is generated or executed in an oncology clinical investigation. This paper is a passage framework: it organizes the case for the bill as the eight questions a member of Congress asks before a yes vote, and pairs each question with a cited fact drawn from the bill text, the National Platform that demonstrates the bill is implementable, and the public record. The eight questions are mandate, authority, safety, fiscal score, constituents, bipartisanship, coalition, and the passage path itself. The framework is written for the staffer, the member, and the committee counsel who must decide whether to mark up, cosponsor, and vote for the bill in both the House and the Senate. It does not rewrite the prior narrative review or the clinician confidence framework; it is a new, analogous companion focused on a single objective: making H. R. 9510 most likely to pass in both chambers.

Disclaimer: This work is independent and not endorsed or sponsored by the Congress, FDA, HHS, any Member, committee, trial sponsor, or medical society; it was generated by Claude Code Opus 4.8 Max using the author's prompt, followed by manual edits. The number "H. R. 9510" is illustrative. This is not enacted law and not legal advice.

Keywords H. R. 9510 | Verification before generation | Physical AI oncology trials | Legislative passage | VVUQ | Budget score | Bipartisanship | FD&C Act section 515D

1 Introduction: the eight questions behind a yes vote

A bill does not pass because it is correct. It passes because enough members of each chamber can answer, to their own satisfaction and to a constituent's, the small set of questions that stand between a draft and a statute. This paper sets out those questions for H. R. 9510 and answers each with evidence.

[DRAFTING INSTRUCTIONS: In the full stage, define for a lay legislator, in plain language and before first substantive use, the following terms, drawing definitions from the

bill text in single-prompt-bill/auto-bill-02/final-bill/publication (sections s2-findings and s3-amendment) and the platform scope in physical-ai-oncology-trials/national-platform/new_paper/final_paper (executive_summary): Physical AI; robot-patient interaction code; VVUQ; verification before generation; the ten gates and the three hard catastrophe predicates; ACCEPT, ESCALATE, and BLOCK; section 515D (21 U.S.C. 360e-5); authorization versus appropriation; PAYGO and the House CutGo rule; and regular order. State the three recurring passage questions and carry them as motifs: “Would I defend this vote to a constituent who lost someone to a preventable error?”; “Can I explain the score to the Budget Committee?”; and “Is there daylight between my party and the other on this?” Cite [1] and [2].]

The map of the argument is one figure: the eight questions are an ordered path from the mandate for a statute to the passage path itself. Figure 1 in the appendix (enactment/mermaid/diagrams/02-eight-passage-questions.md) traces that path.

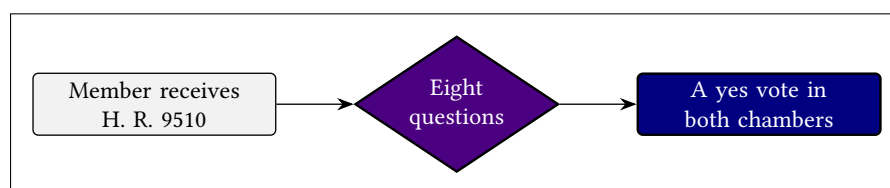


Figure I. The framework in miniature: the eight passage questions stand between the bill on the desk and a yes vote in both chambers. [FULL STAGE: replace with the colored TikZ reproduction of diagram 02.]

This introduction will close, in the full stage, by naming the single objective: not to win an argument, but to assemble a majority in the House and the votes to pass the Senate.

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2 Mandate: is the problem real enough to need a Federal statute?

The first question is whether there is a problem only Congress can solve. A member will not spend capital on a bill that duplicates existing law or chases a hypothetical harm.

[DRAFTING INSTRUCTIONS: In the full stage, build the mandate from the bill’s findings in `single-prompt-bill/auto-bill-02/final-bill/publication/sections/s2-findings.tex`: the embodiment problem (autonomous robots in direct patient contact), the sequencing gap (no Federal law regulates the order of operations, so verification cannot be required before generation), and the financial-data gap (no law prices or discloses the cost of verifying robot-patient interaction code). Anchor the human stakes with [3] and [4] on preventable medical error, and the platform’s demonstrated scale with [2]. Carry the recurring question “Would I defend this vote to a constituent who lost someone to a preventable error?” This section carries Table 1 and the platform-proof figure (diagram 14).]

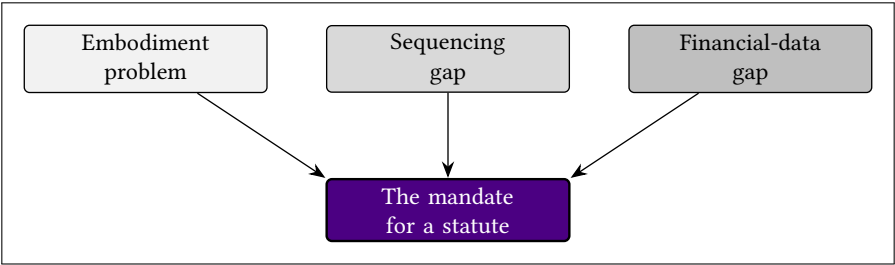


Figure (placeholder). Three gaps in existing law compose the mandate. [FULL STAGE: replace with the colored TikZ reproduction and final caption.]

Gap in existing law	What it leaves unaddressed (to be drafted from s2-findings)
Embodiment problem	[FULL STAGE: errors in machine-generated robot-patient code cannot be caught in time once a robot is in contact with a patient.]
Sequencing gap	[FULL STAGE: no Federal law regulates verification before generation.]
Financial-data gap	[FULL STAGE: no Federal law prices, records, or discloses the cost of verification.]

Table 1: The mandate: the gaps in existing law that only a Federal statute closes.

3 Authority: is this within Congress's power and consistent with existing law?

The second question is whether Congress may act here at all, and whether the bill respects the law already on the books. A clean answer disarms both the constitutional objection and the federalism objection.

[DRAFTING INSTRUCTIONS: In the full stage, ground authority in the bill's structure from `s3-amendment.tex` and `s4-comparative.tex`: the bill amends the Federal Food, Drug, and Cosmetic Act (21 U.S.C. 301 et seq.), an exercise of the commerce power over medical devices; it adds section 515D and ten conforming amendments; its rule of construction leaves the investigational-device exemption (520(g)), human-subjects protection (21 CFR part 50), and the IND framework (21 CFR part 312) undisturbed; and its savings clause (new 360k(c)) preserves State human-over-AI laws. Cite [5], [6], and the closest analogues (section 515C predetermined change control plans; the CMS Medicare Advantage AI rule [7]). Use the author's regulatory adaptations [8, 9, 10]. This section carries the amendment-map figure (diagram 05) and the federalism figure (diagram 09).]

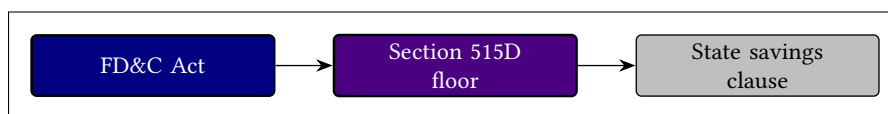


Figure (placeholder). Authority flows from the FD&C Act to a Federal floor that preserves State human-over-AI law. [FULL STAGE: replace with diagram 09.]

[FULL STAGE: add Table (authority) mapping each rule-of-construction clause to the existing-law provision it preserves, body width, L/Y columns.]

4 Safety: what in the bill actually protects patients?

The third question is the one a member will be asked on local television: what, in plain terms, keeps a robot from hurting someone? The answer must be concrete and in the bill.

[DRAFTING INSTRUCTIONS: In the full stage, draw the safety mechanism from `s3-amendment.tex` (section 515D(c)): the ten-gate VVUQ examination, each gate bound to a published standard with an agreement threshold and a coefficient-of-variation bound; the verification fraction of 1.0; and the three hard catastrophe predicates (vascular no-fly, shared-room collision, fault and emergency stop) that must hold without exception. Explain ACCEPT, ESCALATE, and BLOCK. Anchor credibility with the consensus standards [11, 12, 13, 14] and the FDA SaMD action plan [15], and the author's assurance lineage [16, 17]. This section carries the verification-before-generation figure (diagram 03) and the ten-gates figure (diagram 04) and Table 2.]

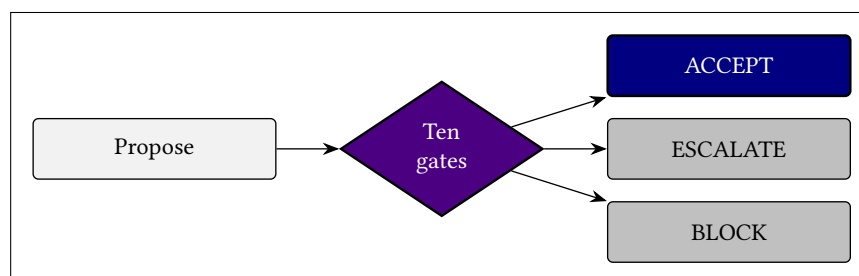


Figure (placeholder). The gate resolves every action to ACCEPT, ESCALATE, or BLOCK before the patient. [FULL STAGE: replace with diagram 03.]

Gate	What it checks (from s3-amendment Table 2)	Bound standard
6, 9, 10	[FULL STAGE: the three hard catastrophe predicates that must hold at agreement 1.00.]	[FULL STAGE: IEC 80601-2-77; ISO/TS 15066; IEC 60601-1]

Table 2: The ten gates and their bound standards (to be completed in the full stage).

5 Fiscal: what does it cost, and is it paid for?

The fourth question decides whether the bill can move at all. A member who cannot explain the score will not carry the bill, and a bill that trips a budget point of order does not reach the floor.

[DRAFTING INSTRUCTIONS: In the full stage, build the fiscal case from `s5-financial.tex` and the appendices `a6-cost-estimate.tex`, `a7-verification-economics.tex`, and `a8-financial-standard.tex`: the authorization of 58 million dollars across FY 2027 to FY 2031 (18, 12, 10, 9, 9), outlays of 53.5 million dollars within the window, no direct spending and no revenue effect, the user-fee carve-out (amended 379j(a)(4)) so a verification record filed alone bears no fee, and the per-cleared-interaction cost of 4,420 dollars against a conventional program-year of 3 million dollars (a 19 to 1 reduction). Tie the discipline to [18], [19], [20], and [21]. Carry the recurring question “Can I explain the score to the Budget Committee?” This section carries the fiscal-picture figure (diagram 07), the cost-asymmetry figure (diagram 08), and Table 3.]

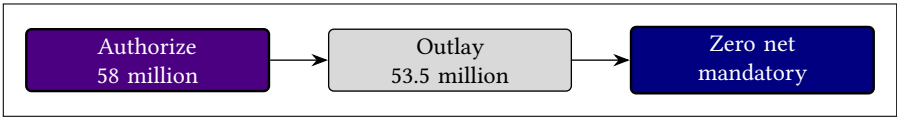


Figure (placeholder). The fiscal picture: a bounded authorization, no net mandatory spending. [FULL STAGE: replace with diagram 07.]

Fiscal year	Authorization (to be drafted from s5-financial)
FY 2027 – FY 2031	[FULL STAGE: 18, 12, 10, 9, 9 million dollars; 58 million total; 53.5 million outlaid in window.]

Table 3: The authorization schedule and budgetary effect (to be completed).

6 Constituents: who does this help back home?

The fifth question is local. A member votes for what helps the district and the State, and a national platform that reaches every region gives every member a reason.

[DRAFTING INSTRUCTIONS: In the full stage, draw constituent benefit from the platform’s `implementation_strategy` and `financial_analysis` sections in `physical-ai-oncology-trials/national-platform/new_paper/final_paper`: the rollout from one site to 50 through 100 operational sites across all major regions, faster enrollment and lower per-patient cost, rural and underserved reach, and the new workforce roles. Anchor with [2] and [22], and the access argument with [23]. This section carries the constituent-reach figure (diagram 11) and the platform-proof figure (diagram 14).]

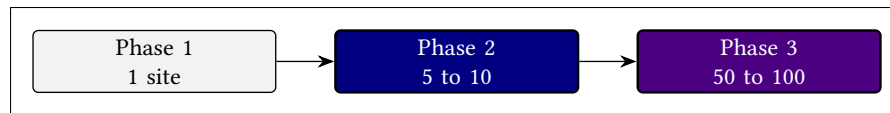


Figure (placeholder). National rollout reaches every region. [FULL STAGE: replace with diagram 11 and a body-width benefits table.]

7 Bipartisanship: can one caucus support it without losing the other?

The sixth question is the one that decides whether a bill is a message or a law. H. R. 9510 is unusual because the same provision answers two different caucuses.

[DRAFTING INSTRUCTIONS: In the full stage, build the bipartisan case from the bill's posture in `s2-findings.tex` and `a9-research-matrix.tex`: to the innovation and deregulation side, verification before generation is a predictable, light-touch rule that speeds credible deployment and creates no new entitlement (cite the deregulatory posture [24]); to the patient-safety and oversight side, it is a hard safety floor with a preserved human-over-AI role. Use the evidence-to-policy literature [25, 26, 27] on how a framed, evidence-paired case crosses the aisle. Carry the recurring question "Is there daylight between my party and the other on this?" This section carries the bipartisan-convergence figure (diagram 12).]

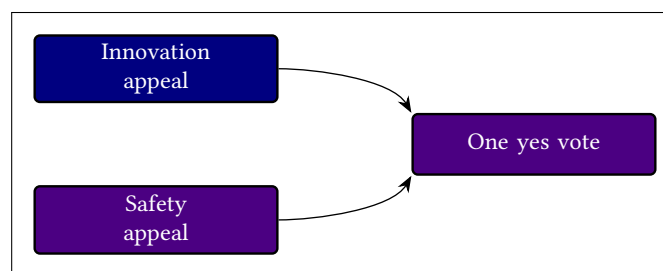


Figure (placeholder). Two appeals converge on one vote. [FULL STAGE: replace with diagram 12; confirm both curved arrows carry an explicit looseness.]

8 Coalition: who is behind it, and is the opposition manageable?

The seventh question is about the room outside the chamber. A member counts who will testify for the bill, who will score it, and who, if anyone, will organize against it.

[DRAFTING INSTRUCTIONS: In the full stage, assemble the coalition from the platform's stakeholder structure and the bill's standards basis: medical and oncology societies and patient-safety groups (the safety floor); patient advocates and rural-access coalitions (the constituent reach); device and robotics makers and standards bodies (predictable rules of the road, cite [11, 13, 14]); and the States, whose human-over-AI laws are preserved. Note the absence of an organized opponent because the bill creates no entitlement and preempts little. Use [28] on patient priority among proposed bills. This section carries the coalition mindmap (diagram 13) and the objection-handling figure (diagram 18).]

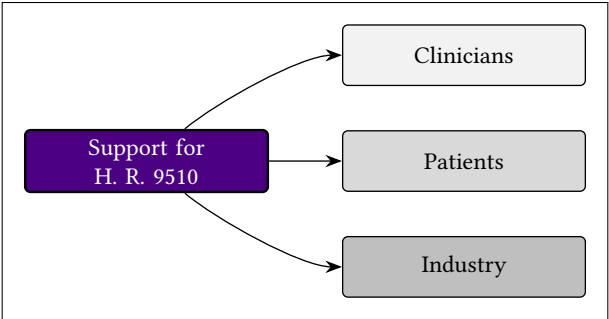


Figure (placeholder). The coalition radiates into stakeholder groups. [FULL STAGE: replace with diagram 13; confirm curved arrows carry explicit looseness.]

9 Passage path: can it move through both chambers and then work?

The eighth question closes the loop. Even a good bill needs a path, and a member wants to know the bill can both pass and then be implemented without embarrassment.

[DRAFTING INSTRUCTIONS: In the full stage, lay out the path from `a9-research-matrix.tex` and the bill’s effective-date and rulemaking provisions in `s3-amendment.tex`: introduction and referral, subcommittee and full-committee markup, House floor passage, a Senate companion and the same sequence, amendment exchange or conference, and enrollment; the vote thresholds (a House majority, Senate cloture at 60, Senate passage at 51); and the implementation runway (final regulations within 365 days, effective the first quarter at least one year after enactment, 180 days for enrolling investigations). Close by showing the platform is ready to implement what the bill codifies [2, 29]. Reference the legislative process [30]. This section carries the legislative-journey figure (diagram 06), the Senate-companion sequence (diagram 15), the markup gitGraph (diagram 16), the vote-thresholds requirement diagram (diagram 17), and the capstone (diagram 20).]

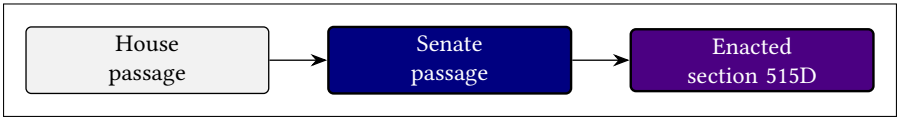


Figure (placeholder). The path from two chambers to one statute. [FULL STAGE: replace with diagram 20 capstone and the synthesis table.]

10 Appendix A: figure compendium

This appendix will reproduce the remaining figures from the Mermaid catalog (enactment/mermaid/) as colored TikZ, so the framework carries the full set of twenty exhibits in the strict palette (black, grayscales, #4B0082, #000080, #C0C0C0).

[DRAFTING INSTRUCTIONS: In the full stage, reproduce as colored TikZ the catalog figures not yet placed in the body: 01 passage decision, 10 standards basis, 16 markup lifecycle, 17 vote thresholds, 18 objection handling, and 19 scoring path. Each figure must keep a uniform `\vspace{-0.75cm}` between the figure and its caption (now built into `\psgcaption`), no text-box and arrow overlaps, an explicit looseness on every curved arrow, and even box spacing. The verify stage audits each twice.]

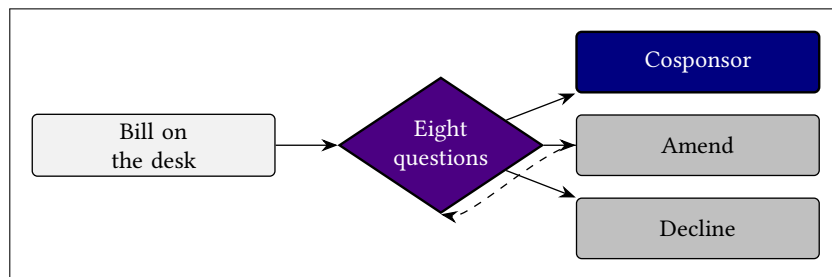


Figure (placeholder). The passage decision with three guarded outcomes. [FULL STAGE: replace with the colored TikZ reproduction of diagram 01.]

[FULL STAGE: add the remaining appendix figures and a closing paragraph that ties the twenty exhibits to the eight questions.]

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Ethical disclosures

This is independent research. It is not endorsed or sponsored by the Congress, the FDA, HHS, any Member or committee, any trial sponsor, contract research organization, institutional review board, or medical society. It is not enacted law and not legal advice. The number “H. R. 9510” is illustrative.

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Data availability

All source files, the Mermaid catalog, and the references are available in the enactment/ directory of the kevinkawchak/law-physical-ai-trials repository. No proprietary data is used; all supporting numbers are illustrative or simulation results unless tied to a cited source.